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H. Analog Devices shall have the right upon ten (10) days prior written notice to audit your compliance with the terms of this Agreement during normal business hours. In connection with such audit Analog Devices shall have access to all reasonably requested documents, equipment, information, networks, facilities and personnel. You shall maintain complete and accurate records of your use of the SOFTWARE for a period of at least three years from the applicable use of the SOFTWARE. If requested by Analog Devices, within ten business days of such request, you shall either (i) certify in writing that you are fully compliant with this Agreement or (ii) deliver a notice in writing stating all of the reasons why you are not fully compliant.

I. You shall comply with all laws, legislation, rules, regulations, governmental requirements and industry standards with respect to SOFTWARE, the Repository, Publishing Guidelines and Add-Ins, and the performance by you of your obligations hereunder, existing in any applicable jurisdiction. In the event that this Agreement is required to be registered with any governmental authority, you shall notify Analog Devices in writing and cause such registration to be made and shall bear any expense or tax payable in respect thereof.

J. Software provided with U.S. Government Restricted Rights. If the SOFTWARE or documentation provided by Analog Devices or its affiliates or their respective suppliers is procured by or on behalf of the United States Government, the Government agrees that such software or documentation is "commercial computer software" or "commercial computer software documentation" and that absent a written agreement to the contrary, the Government's rights with respect to such SOFTWARE or documentation are limited by the terms of this Agreement, pursuant to FAR § 12.212(a) and/or DFARS § 227.7202-1(a), as applicable.

K. You may utilize consultants or third party contractors ("Consultants") solely for the purpose of assisting you with your internal use of (1) the SOFTWARE as permitted under Section 1(A) or (2) the Repository as

permitted under Section 4. If you engage any Consultants, you shall:

- (a) Obtain prior written approval from Analog Devices prior to any Consultant using the SOFTWARE or the Repository (as applicable) by emailing processor.tools.support@analog.com.
- (b) Promptly cease using any Consultant at Analog Devices' reasonable request. You agree that it would be reasonable for Analog Devices to request that you cease using any Consultant if, among other reasons, Analog Devices reasonably believes that the Consultant was infringing or misappropriating any Analog Devices intellectual property rights or if Analog Devices reasonably believes that the Consultant is unlikely to comply (or be able to comply) with the terms and conditions of this Agreement.
- (c) Engage Consultants under a written agreement that obligates the Consultant to the same (or greater) obligations relative to SOFTWARE and the Repository as you agreed to under this Agreement prior to allowing the Consultant use or access to the SOFTWARE or the Repository.
- (d) Notify Analog Devices in the event of any acts or omissions by the Consultant which if performed or not performed by you would be a breach of this Agreement.
- (e) Specify that Analog Devices is a third party beneficiary of the agreement between you and the Consultant.

You agree that you are liable for any acts or omissions by the Consultant which, if performed or not performed by you, would be a breach of this Agreement.

L. Notwithstanding anything in this Agreement, You may not use any trademark or trade name of Analog Devices or make any public announcement regarding the existence of this Agreement without Analog Devices' prior written consent. You may not publish or provide the results of any benchmark or comparison tests run on the SOFTWARE to any third party without the prior written consent of Analog Devices.

M. If requested by Analog Devices, you shall report to Analog Devices by emailing licensing@analog.com (or to such other address and frequency as reasonably specified by Analog Devices from time to time) within thirty (30) days of the end of each calendar quarter (i) the name of each of your products which contains any Processor Libraries or Downloadable Add-Ins, (ii) the name(s) of the Processor Libraries and/or Downloadable Add-Ins included in such products, (iii) the number of Analog Devices products included in each of your products, (iv) the quantity of such of your products you distribute and the number of instances of the Processor Libraries and/or Downloadable Add-Ins executing on each of your products and (v) such other information as Analog Devices may reasonably requested related to use of the SOFTWARE and Downloadable Add-Ins.

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Appendix A – Third Party Licenses

This product makes use of third party and open source software components, which are detailed at the location below.

- <https://download.analog.com/SIGST-02/versions.html>